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Flock ‘Safety’ endangers us all

Liza Barry | Special to the Daily Cal
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Alison Yang | Staff



Last September, in Denver, Chrisanna Elser was informed that she had been caught on camera stealing a package. Local police sergeant Jamie Milliman showed up on her front doorstep, claiming to have video evidence of the crime. When she denied the charge, he told her, “You know, we have cameras in that town. You can’t get a breath of fresh air in or out of that place without us knowing.” The cameras he was referring

to belong to Flock Safety, an AI surveillance company whose services have been contracted by the city of Berkeley since 2023. The person in the video was not Elser, but Flock's footage had led the police department to believe it was her. As this incident, which was reported on by the Colorado Sun, demonstrates, Flock Safety emboldens law enforcement to harass people and weaponize dangerously unreliable technology.

According to a resolution approved by Berkeley City Council this past July, the contract's purpose is "to deploy a critical tool to deter crime and support criminal investigations." Flock Safety systems utilize AI-powered cameras to identify people or objects in patterns, systematically collecting vast sets of data through automatic license plate readers. So, if you have driven in Berkeley, you have likely been "flocked."

Flock Safety has violated the privacy of many living in California, a state where sharing data collected by automatic license plate readers is limited under SB 34, which was passed in 2015. This bill states that data collected by automated license plate readers cannot be used for immigration enforcement or any non-felony crime-related purposes. However, data collected by Flock has been subpoenaed by various agencies within the Trump administration, including Immigration and Customs Enforcement, or ICE. In July, it was discovered that Oakland's police department had used Flock data to illegally aid in an ICE investigation. In another case, San Francisco police illegally permitted out-of-state cops to search through Flock data, with some searches labeled as being related to ICE.

More locally, an internal audit of the Berkeley Police Department revealed that external law enforcement agencies have searched the statewide automated license plate reader data, which includes Berkeley's, using terms such as "ICE" and "CBP" in the search engine's "reason" field. Joshua Cayetano, chair of the Police Accountability Board, explained in a letter dated Nov. 10, 2025, "BPD did not mention that it had identified a potential policy violation of Policy 1305 or Berkeley's sanctuary city resolution." This evidence suggests that BPD knew that Flock may have violated sanctuary city policy, but did not disclose this information to the City Council or the public. This lack of transparency demonstrates how mass surveillance can be easily mishandled and misused in the hands of law enforcement.

We at the Berkeley Copwatch reject Flock Safety, or any mass surveillance company, disguised as crime solutions. It is commonly understood that surveillance tools enable police to respond to crime, but capturing an unlawful act on camera does not prevent it from happening or stop others from committing it in the future. We implore the city of Berkeley to invest in proactive solutions that bolster public safety by maximizing community involvement, such as programs that provide job training, social infrastructure, violence intervention and affordable housing. These approaches are more effective than throwing surveillance-based solutions at a social problem, and we demand that resources be allocated to prioritize the well-being of our community, rather than costly surveillance.

Now is the time to become involved in protecting yourself and your neighbors. The Berkeley City Council is scheduled to meet at 1231 Addison St. on March 24 at 6 p.m. to vote on expanding Flock's surveillance in Berkeley. This is their last vote on the issue, and it will determine whether mass surveillance stays in Berkeley. We need you to show up and make a public comment. Furthermore, we urge you to contact your local city council members and tell them to vote "no" on Berkeley's upcoming contract extension with Flock. The only way to signal to Berkeley is to use your voice, and we hope that you will.

Liza Barry is a member of the Berkeley Copwatch. Contact the opinion desk at opinion@dailycal.org or follow us on X.